

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Team # 3	CCRB Case #: 201408735	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/24/2014 5:55 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 2/24/2016	Precinct: 44		
Date/Time CV Reported Mon, 08/25/2014 12:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/25/2014 12:15 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POF Jada Shipmonrichards	12600	955485	PBBX		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Mary Cunningham	17931	954679	PBBX		
2. POM Adam Landau	18079	932879	044 PCT		
3. SGT Owais Khanzada	04069	945879	044 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . POF Jada Shipmonrichards	Abuse: PO Jada Shipmon-Richards refused to provide her shield number to § 87(2)(b)		A . Unsubstantiated		

Case summary

On August 24, 2014, at approximately 5:55 p.m., § 87(2)(b) double parked his vehicle in front of § 87(2)(b) in the Bronx. His girlfriend, § 87(2)(b) was in the passenger seat.

PO Jada Shipmon-Richards approached § 87(2)(b)'s car and told § 87(2)(b) that he could not park there. § 87(2)(b) responded that he knew that he could not park there but asked if he could wait there for a few minutes so that § 87(2)(b) could quickly cash a check. In response, PO Shipmon-Richards told § 87(2)(b) that he could wait for five minutes.

A few minutes later, PO Shipmon-Richards' approached § 87(2)(b)'s car again and told him he had to move. § 87(2)(b) then drove to the corner but stopped because the traffic light turned red. At that point, PO Adam Landau and Sgt. Owais Khanzada arrived in a vehicle and spoke to PO Shipmon-Richards. By then, § 87(2)(b) had returned to the car. PO Shipmon-Richards approached § 87(2)(b)'s vehicle and asked for his ID.

In response, § 87(2)(b) requested PO Shipmon-Richards' shield number. PO Shipmon-Richards' was standing approximately one to three feet away from § 87(2)(b)'s vehicle window. PO Shipmon-Richards did not respond and proceeded to issue § 87(2)(b) summonses for § 87(2)(b) (Allegation A).

§ 87(2)(g)

Mediation and Criminal History

§ 87(2)(b) was offered mediation, § 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- PO Shipmon-Richards has been a member of the service for 1 year and this is the first CCRB complaint filed against her (encl. A1).
- § 87(2)(b) has two prior CCRB complaints (encl. A2).

○ § 87(2)(b)

■

Additional Officers

- PO Landau and Sgt. Khanzada were listed as witness officers but were not present for the entire incident. § 87(2)(b) placed these officers "nearby" during the alleged request for shield number. § 87(2)(g)

§ 87(2)(b).

Explanation of Subject Officer Identification

- § 87(2)(b) obtained PO Shipmon-Richards' tax registry number from the summons he received. PO Shipmon-Richards matched the description that § 87(2)(b) provided and acknowledged that she issued § 87(2)(b) the summons.

Findings and Recommendations

Allegation A-Abuse of Authority: PO Jada Shipmon-Richards refused to provide her shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) was double-parked and received a summons during the incident. PO Shipmon-Richards acknowledged interacting with § 87(2)(b) § 87(2)(g).

In the statement he provided to the CCRB on September 9, 2014, (encl. C-1-C-4), § 87(2)(b) alleged that when he requested PO Shipmon-Richards' shield number, she was approximately one to three feet away. He believes that the request was loud enough and that PO Shipmon-Richards heard him. He states that, PO Shipmon-Richards did not respond to this request.

In the statement she provided to the CCRB on September 9, 2014, (encl. E-1), § 87(2)(b) stated that she did not recall § 87(2)(b) making the request for PO Shipmon-Richards' shield.

In the statement she provided to the CCRB on November 6, 2014 (encl. G-1-G-6), PO Shipmon-Richards denied hearing § 87(2)(b) ask for her shield number at any point and denied ever refusing to provide it. She stated that if § 87(2)(b) had requested it, she would have willingly provided it. PO Shipmon-Richards also stated that her shield was visible on her outmost garment in plain view.

In the statement she provided to the CCRB on November 18, 2014 (encl. I-1-I-5), PO Cunningham denied hearing § 87(2)(b) request PO Shipmon-Richards' shield number. She also stated that he did not hear or see PO Shipmon-Richards do so.

Although § 87(2)(b) and § 87(2)(b) both confirmed that § 87(2)(b) had returned to the vehicle by the time that PO Shipmon-Richards approached it for a second time, § 87(2)(g)

§ 87(2)(b). During his initial phone statement, § 87(2)(b) states that he requested PO Shipmon-Richards' shield number after she issued him a summons. He only mentions requesting the information once. During his interview at the CCRB, § 87(2)(b) indicated that he made the request before PO Shipmon-Richards issued him the summons and only mentions making the request once. He states that PO Shipmon-Richards ignored this request and walked to the corner to write him a summons. During a follow up phone call, § 87(2)(b) states that he made the request to PO Shipmon-Richards after she had begun to write him a summons and asked two or three times.

In the testimony she provided, PO Shipmon-Richards states that when she initially approached the drivers' side of § 87(2)(b)'s car, PO Cunningham approached the passenger side and conversed with § 87(2)(b). PO Shipmon-Richards stated she could not hear the conversation that they had. § 87(2)(b) § 87(2)(g) states that she conversed with PO Cunningham after PO Shipmon-Richards approached § 87(2)(b)'s car for a second time. PO Cunningham stated that when she first approached the car, she did not recall whether anyone else was in it. She also stated that after § 87(2)(b) returned to the car initially, she went back to the check cashing store and it was then that PO Shipmon-Richards and PO Cunningham returned

to § 87(2)(b) s vehicle to ask for his license. § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date